

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF DELAWARE

QORVO, INC.,	)	
	)	
Plaintiff,	)	
	)	
v.	)	C.A. No. 21-1417 (JPM)
	)	
AKOUSTIS TECHNOLOGIES, INC. and	)	DEMAND FOR JURY TRIAL
AKOUSTIS, INC.,	)	
	)	
Defendants.	)	

JOINT CLAIM CONSTRUCTION AND PREHEARING STATEMENT

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October 7, 2022

Pursuant to the Court's Amended Scheduling Order (D.I. 106), Plaintiff Qorvo, Inc. ("Qorvo") and Defendants Akoustis Technologies, Inc. and Akoustis, Inc. ("Akoustis") (collectively, "Parties") submit this Joint Claim Construction Statement and Prehearing Statement regarding U.S. Patent Nos. 7,522,018 (the "'018 Patent") 9,735,755 (the "'755 Patent") and 10,256,786 (the "'786 Patent").

I. AGREED CLAIM CONSTRUCTIONS (LPR 4.5(A))

The Parties agreed that the reference numerals in the asserted claims of the '018 Patent are not limiting and are solely for exemplary purposes.

II. EACH PARTY'S PROPOSED CONSTRUCTION FOR EACH DISPUTED TERM (LPR 4.5(B))

Attached as Exhibit A is Qorvo's proposed constructions of the claim terms in dispute, identified intrinsic evidence that supports the proposed constructions, and identified extrinsic evidence that Qorvo intends to rely on either to support its proposed constructions or to oppose Akoustis' proposed constructions.

Attached as Exhibit B is Akoustis' proposed constructions of the claim terms in dispute, identified intrinsic evidence that supports the proposed constructions, and identified extrinsic evidence that Akoustis intends to rely on either to support its proposed constructions or to oppose Qorvo's proposed constructions.

III. IDENTIFICATION OF TERMS FOR CONSTRUCTION EACH PARTY CONTENDS WOULD REQUIRE A DISPOSITION OF THE CASE IN ITS FAVOR AND/OR WILL BE SUBSTANTIALLY CONDUCIVE TO PROMOTING SETTLEMENT (LPR 4.5(C))

Pursuant to the Court's Local Patent Rule 4.5(c), Qorvo states that no single claim term in dispute would require a disposition of the case in either Party's favor. But, if the Court adopts Qorvo's constructions, such adoption will likely be substantially conducive to promoting settlement. Qorvo reserves the right to supplement, amend, or alter this statement.

Akoustis states that its proposed construction for the “piezoelectric layer” disputed term of the ’786 Patent would require disposition in its favor as it relates to Qorvo’s false marking claim. Akoustis further states that Qorvo’s proposed construction of “piezoelectric layer,” if adopted by the Court, would not be dispositive of the false marking claim or the case overall, nor would it be substantially conducive to promoting settlement. Akoustis further states that any adopted construction of the ’755 Patent disputed terms would not be dispositive of the case or substantially conducive to promoting settlement. Akoustis reserves the right to supplement, amend, or alter this statement.

IV. REQUESTED LENGTH FOR THE CLAIM CONSTRUCTION HEARING AND TECHNOLOGY TUTORIAL (LPR 4.5(D))

Pursuant to the Court’s Amended Scheduling Order (D.I. 106), the claim construction hearing via video (“Hearing”) and technology tutorial via video (“Tutorial”) are scheduled to take place on November 17, 2022 at 9:30 AM CT/10:30 AM ET. The Parties respectfully request the Court to begin the scheduled proceeding with a technology tutorial. The Parties anticipate the tutorial to take approximately one hour, with that time equally divided between the Parties. Further, the Parties anticipate the Hearing to take no more than approximately three hours, with that time equally divided between the Parties. Accordingly, the Parties anticipate the entire proceeding to take approximately four hours.

V. ANTICIPATED WITNESSES TO CALL AT THE CLAIM CONSTRUCTION HEARING (LPR 4.5(E))

The Parties have agreed that oral testimony of each expert witness is not necessary for the Hearing. However, Qorvo’s expert witness will be present at the hearing, and will be available to testify should the Court have questions for him on issues of claim construction. Likewise, Akoustis’ expert witness will be present at the hearing, and will be available to testify should the

Court have questions for him on issues of claim construction. The Parties respectfully reserve the right to call and rely on expert oral testimony in subsequent phases of this case.

VI. OTHER ISSUES (LPR 4.5(F))

Akoustis seeks a prehearing conference for further clarification as to LPR 4.6. More specifically its direction to submit the best available specimens of patented technology and allegedly infringing activity (e.g. products, schematics, photos, product information sheets). While *Wilson Sporting Goods Co. v. Hillerich & Bradsby Co.*, 442 F.3d 1322 (Fed. Cir. 2006), generally supports the proposition of allowing a court to review demonstratives when assessing claim construction, for limited purposes, that proposition should be considered as narrowly cabined by the general rule that claim construction is based on the intrinsic record and any permissible extrinsic evidence. *Vitronics Corp. v. Conceptronic, Inc.*, 90 F.3d 1576, 1582 (Fed. Cir. 1996). Akoustis proposes the following dates for the prehearing conference: Tuesday, October 25, 2022, or Thursday, October 27, 2022.

Qorvo does not believe a prehearing conference is necessary regarding LPR 4.6. Nevertheless, Qorvo is available on the days suggested by Akoustis to the extent the Court wishes to hold such a conference.

At present, the Parties have agreed there are no other issues to raise to the Court.

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